

Uttarakhand Medicare Service Persons and Institutions (Prevention of Violence and Damage to Property) Act, 2013

Source: <https://indiankanoon.org/doc/47902012/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

, Cited by

5

]

State of Uttarakhand - Act

Uttarakhand Medicare Service Persons and Institutions (Prevention of Violence and Damage to Property) Act, 2013

UTTARAKHAND

India

Uttarakhand Medicare Service Persons and Institutions (Prevention of Violence and Damage to Property) Act, 2013

Act 21 of 2013

Published on 1 January 2013

Commenced on 1 January 2013

[This is the version of this document from 1 January 2013.]

[Note: The original publication document is not available and this content could not be verified.]

Uttarakhand Medicare Service Persons and Institutions (Prevention of Violence and Damage to Property) Act, 2013

(Uttarakhand Act

No. 21 of 2013

)

Last Updated 4th March, 2020

An Act to prohibit violence against Medicare Service Persons and damage to Property in Medicare Service Institutions.

Enacted by the Uttarakhand State Legislative Assembly in the Sixty-fourth Year of the Republic of India, as follows : -

1.

Short title, Extent and Commencement.

(1)

This Act may be called the Uttarakhand Medicare Service Persons and Institutions (Prevention of Violence and Damage to Property) Act, 2013.

(2)

It extends to the whole of the State of Uttarakhand.

(3)

It shall come into force at once.

2.

Definitions.

- In this Act, unless the context otherwise requires : -

(a)

'Medicare Service Institutions' means all institutions providing medicare to people or through mobile medical unit or by arranging medical camps, which are under the control of State or Central Government or Local Bodies etc. including any private hospital having facilities for treatment of the sick and used for their reception or stay, any private maternity home where women are usually received and accommodated for the purpose of confinement and ante-natal and post-natal care in connection with child birth or anything connected therewith, and any private nursing home used or intended to be used for the reception and accommodation of persons suffering any sickness, injury or infirmity whether of body or mind, and providing of treatment or nursing or both of them and includes a maternity home or convalescent home, etc. and an ambulance;

(b)

'Medicare Service Persons' in relation to a Medicare Service Institutions, shall include : -

(i)

Registered Medical Practitioner, working in Medicare Institutions (including those having provisional registration);

(ii)

Registered Nurses;

(iii)

Auxiliary Nurse Mid-wife and General Nursing Midwife;

(iv)

Trained Dai;

(v)

Medical Students;

(vi)

Nursing Students; and

(vii)

Para medical and other auxiliary workers employed and working in Medicare Service Institutions;

(c)

'Offender' means any person, who either by himself or as a member or as a leader of a group of persons or organization commits or attempts to commit or abets or incites the commission of violence under this Act;

(d)

'Property' shall include both moveable and immovable property;

(e)

'Violence' means activities of causing any harm, injury or endangering the life or intimidation, obstruction or hindrance to any medicare service person in discharge of duty in the Medicare Service Institution or patient or damage to property in the Medicare Service Institution.

3.

Prohibition of violence.

- Any Act of violence against, Medicare Service Persons or damage to property in the Medicare Service Institutions is hereby prohibited.

4.

Penalty.

(1)

Whoever commit or attempts to commit any violence under section 3, shall be punishable with imprisonment for a term which may extend to three years or with fine which may extend to fifty thousand rupees or with both.

(2)

Any person in addition to the punishment specified in sub-section (1), shall be also liable to a penalty of double of the amount of purchase price of medical equipments damaged and loss caused to the property.

(3)

Whoever, having been convicted of an offence under any provision of this Act is again convicted of an offence under the same provision, shall be punish, for the second and for each subsequent offence, with double the penalty provided for that offence.

(4)

If the complaint is frivolous or has been made with malafide intention, the competent court after trial may proceed against the complainant under the relevant provisions of the Indian Penal Code, 1860.

(5)

If such persons does not pay the penal amount under sub-section (2), the said sum shall be recoverable as arrears of land revenue.

5.

Cognizance of offence.

- Any offence committed under section 3, shall be cognizable and non-bailable and shall be triable by the Court of Judicial Magistrate of the First Class.

6.

Act not in derogation of any other law.

- The provisions of this Act shall be in addition to and not in derogation of the provisions of any other law, for the time being in force.

7.

Savings.

- Notwithstanding the lapse of the Uttarakhand Medicare Service Persons and Institutions (Prevention of Violence and Damage to Property) Ordinance, 2011 anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

Related AI tags, queries and research notes

Translation